

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF PONOMAREV v. RUSSIA

(Application no. 33245/11)

JUDGMENT

STRASBOURG

1 December 2022

This judgment is final but it may be subject to editorial revision.



In the case of Ponomarev v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Darian Pavli, *President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar*,

Having deliberated in private on 10 November 2022,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in an application against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on 28 February 2011.

2. The applicant was represented by Mr V. Shukhardin, a lawyer practising in Moscow.

3. The Russian Government ("the Government") were given notice of the application.

THE FACTS

4. The applicant's details and information relevant to the application are set out in the appended table.

5. The applicant complained of the various restrictions imposed by the authorities on the location, time or manner of conduct of a public event. He also raised other complaints under the provisions of the Convention.

THE LAW

I. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

6. The applicant complained about the restrictions imposed by the authorities on the location, time or manner of conduct of a public event. He relied on Articles 10 and 11 of the Convention. The Court will examine the complaint under Article 11, interpreted where appropriate in the light of Article 10 (see *Lashmankin and Others v. Russia*, nos. 57818/09 and 14 others, §§ 363-65, 7 February 2017). Article 11 reads as follows:

> "1. Everyone has the right to freedom of peaceful assembly and to freedom of association with others, including the right to form and to join trade unions for the protection of his interests.
>
> 2. No restrictions shall be placed on the exercise of these rights other than such as are prescribed by law and are necessary in a democratic society in the interests of national security or public safety, for the prevention of disorder or crime, for the protection of health or morals or for the protection of the rights and freedoms of others. This Article

shall not prevent the imposition of lawful restrictions on the exercise of these rights by members of the armed forces, of the police or of the administration of the State."

7. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references).

8. In the leading case of *Lashmankin and Others,* cited above, the Court already found a violation in respect of issues similar to those in the present case.

9. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion on the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicant's freedom of assembly were either based on legal provisions which did not meet the Convention's "quality of law" requirements or were not "necessary in a democratic society".

10. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

II. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

11. The applicant submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in *Lashmankin and Others*, cited above, §§ 326-61, concerning the lack of an effective remedy in respect of a violation of the freedom of assembly in Russia.

III. REMAINING COMPLAINTS

12. The applicant also raised complaints under Article 5 of the Convention.

13. The Court has examined the application and considers that, in the light of all the material in its possession and in so far as the matters complained of are within its competence, these complaints either do not meet the admissibility criteria set out in Articles 34 and 35 of the Convention or do not disclose any appearance of a violation of the rights and freedoms enshrined in the Convention or the Protocols thereto.

It follows that this part of the application must be rejected in accordance with Article 35 § 4 of the Convention.

IV. APPLICATION OF ARTICLE 41 OF THE CONVENTION

14. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

15. Having regard to the nature of the applicant's complaints, the Court considers that the finding of a violation, triggering the respondent State's obligation to take measures aimed at improving the general framework governing the organisation and holding of public assemblies (see *Lashmankin and Others*, cited above, §§ 402-78), should be regarded as constituting the most appropriate means of redress (see *Alekseyev and Others v. Russia* [Committee], nos. 26624/15 and 76 others, § 18, 16 January 2020).

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Declares* the complaints concerning the restrictions imposed by the authorities on the location, time or manner of conduct of the public event and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible, and the remainder of the application inadmissible;

2. *Holds* that there has been a breach of Article 11 of the Convention concerning the restrictions imposed by the authorities on the location, time or manner of conduct of public events;

3. *Holds* that there has been a violation of the Convention as regards the other complaints raised under well-established case-law of the Court (see the appended table);

4. *Holds* that the finding of the violation of the Convention constitutes in itself sufficient just satisfaction for the non-pecuniary damage sustained by the applicant.

Done in English, and notified in writing on 1 December 2022, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Darian Pavli
Acting Deputy Registrar	President

APPENDIX

Application raising complaints under Article 11 of the Convention
(Restrictions on location, time or manner of conduct of public events)

Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Location Date of the public event planned	Restrictions applied	Other measures applied	Final domestic decision (type of procedure) Date Name of the court	Other complaints under well-established case-law
33245/11 28/02/2011	**Lev Aleksandrovich PONOMAREV** 1941	Shukhardin Valeriy Vladimirovich Moscow	Tverskaya Square, Moscow 12/08/2010	proposal to change the location	arrest, conviction of an administrative offence	administrative proceedings, Tverskoy District Court of Moscow 09/09/2010	Art. 13 - lack of any effective remedy in domestic law - Absence of an effective domestic remedy which would allow an enforceable judicial decision to be obtained on refusals to approve the location, time or manner of conduct of a public event before its planned date and to assess "necessity" and "proportionality" of a refusal (Lashmankin and Others v. Russia, no. 57818/09 and 14 others, §§ 342-61, 7 February 2017)